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Section Title(S)

CASE 37: THE CASE OF THE MAN WHO HELPED HIS MOTHERS-IN-LAW CROSS A FORD

imenda (chief of the Mbowe tribe--right): 'You were a year at Kalabo without going to your wife. You took the goods of your hut to Kalabo. Your wife's father was ill and you did not go there, or to mourn: you freed your wife, and this was shown by your taking your pot there, and you knew it. But the bad thing is your crossing the water with the two women. You said you did it to protect them from the crocodiles. Why then did you not turn back to guard the other woman when she crossed on her return? You cared for the one and you slept with her. The law of incest is old, and in the past you would have been killed for this. You know that one does not see the wife of another man naked, or even her thighs. I am astonished that you are not ashamed. How can the two maternal uncles of your wife who live in one village receive you in the village? I cannot marry you there where they are--you will kill one another. Let her marry another who will get on with her. I agree with the others, but I do not know what will happen at the finish, because our law (*mulao*) does not go straight like cattle to water, but here and there to the finisher.'

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The other judges all followed these judgments, and I therefore quote without context, some of the statements in judgments, in their order, as they illuminate the themes we are considering. 'Your giving the pot shows that you had done wrong to her and her parents, and you were buying her again; but before you could take her home there came this new quarrel' . . . 'I support your wife; she is a good girl, a true woman. If our children were the same, we would have children. She sees the incest, and asks, "Is it my husband who goes to my mother?"' . . . 'You slept with your wife's maternal uncle's wife, or you would have appealed [he had been fined in a separate case for this adultery]. The law does not agree that one enters the hut of another man, or

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ask his wife for snuff, outside of him' . . . 'The law of nakedness is inherent, it comes from childhood; small boys and girls hide their genitals. And as *imenda*, my lord, says, the law of hiding from women crossing water is from King Lewanika [d. 1916]. Also, as *imenda* says, you were not protecting her from crocodiles or you would have worried  150 about the other woman. If it were I, I would fine you for three things: (1) crossing the water with naked women, against the law of Lewanika; (2) not being afraid of the nakedness of your mother-in-law which is sleeping with your mother-in-law; and (3) sleeping with another man's wife' . . . 'I do not enter into the affair of the pot or the other affairs. Your wife is freed by your crossing the water with her mother. To sleep with your mother-in-law and to commit shame by seeing her naked are the same thing. You cannot call your mother-in-law to see you undress, or asleep. I see your wife is truthful when she says she cannot return to you. I might have returned your wife on the other affairs because you paid a pot, but I am stopped by the crossing of water with your mother-in-law. I do not separate these. Your wife is freed, unless you are given her by the *ngambela* (R1)' . . . 'Man, I speak by the law. I would have called as witnesses the people of the village where you and she slept, but in the other kuta you admitted your wrongdoing--crossing the water with a woman who ought not to be seen familiarly. You cannot even do that with a sister-in-law [with whom there is a joking relationship]. It shows you look on her as a wife. And even if it is an ordinary woman you should fear to cross. But *bukwenyani* (relationship of parent-in-law and child-in-law) is a thing brought by God. You are mad. Your wife asks for a divorce and I free her' . . . 'You, my kinsman, I cannot be a renegade. You call your mother-in-law sister-in-law, You know one must avoid one's wife's maternal uncle's wife in the village. To cross water with a woman, an ordinary woman, is bad. You did with your mother-in-law, she was naked and you carried her dress. This is like sleeping with her. This is a terrible thing by our law: to have intercourse with a dog, to have intercourse with a cow, to have intercourse with a tabooed person like your mother-in-law here. So the girl can come out of your hut.'

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Human Relations Area Files

755 Prospect Street
New Haven, CT 06511

General Inquiries:  hraf@yale.edu

Issues and Bugs:  hraf-support@yale.edu



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